

IN THE COURT OF COUNTY
(COURT AND COUNTY NAMED IN THE CAPTION - THE COURT THAT GRANTED THE
DISCHARGE, AND ITS COUNTY (STATE, SUPERIOR, MAGISTRATE, PROBATE OR
MUNICIPAL; YOUR OWN CASE PAPERS NAME BOTH, AND THE INSTRUCTIONS PAGE SAYS
WHO CAN CONFIRM THEM))
STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PETITION TO RESTRICT AND SEAL DISCHARGED FIRST OFFENDER RECORDS
(O.C.G.A. Sec. 42-8-62.2(c))

The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, files this petition in the above-styled criminal case, in the existing case under the existing case number, under O.C.G.A. Sec. 42-8-62.2(c). The defendant states:

1. The defendant was sentenced pursuant to Article 3 of Chapter 8 of Title 42 of the O.C.G.A. (the First Offender Act, O.C.G.A. Sec. 42-8-60 et seq.) in the above-styled case, prior to July 1, 2026. The final disposition showing the First Offender sentence, and the discharge order where one was entered, are attached as Exhibit A.
2. The defendant was exonerated of guilt and discharged, without court adjudication of guilt, as a matter of law or pursuant to a court order, prior to July 1, 2026. Where no discharge order was entered despite the completed sentence, the defendant was discharged as a matter of law, which O.C.G.A. Sec. 42-8-62.2(c) reaches equally.
3. The defendant petitions the court that granted the discharge for an order to seal and make unavailable to the public the criminal file, docket books, criminal minutes, final record, all other records of the court and the defendant's criminal history record information in the custody of the clerk of court, including within any index, as O.C.G.A. Sec. 42-8-62.2(c) provides. Under O.C.G.A. Sec. 42-8-62.2(d), the court shall order sealing within 90 days of this filing, with no findings required.

CASE FACTS THE DEFENDANT SUPPLIES (fill each blank from the court record, never from memory; the instructions page lists where each record lives):

Date the First Offender sentence was imposed:

.....

The sentence imposed under the First Offender Act:

.....

Date of the exoneration and discharge - it must be before July 1, 2026 for this route:

.....

Whether a discharge order was entered, or the discharge occurred as a matter of law without an order:

.....

Date of arrest in this case:

.....

READ EACH NUMBERED STATEMENT BEFORE SIGNING. Each is pleaded as your own statement. If any numbered statement is not true of your case, do not file this petition; the instructions page tells you where to get help instead.

WHEREFORE, the defendant asks the Court to enter an order, within 90 days of this filing as O.C.G.A. Sec. 42-8-62.2(d) provides, sealing and making unavailable to the public the criminal file, docket books, criminal minutes, final record, all other records of the court and the defendant's criminal history record information in the custody of the clerk of court, including within any index, with the clerk to seal within 60 days as O.C.G.A. Sec. 42-8-62.2(e) provides; and further ordering all law enforcement agencies, jails and detention centers, including the arresting agency and the jail or detention center, to restrict their records of this case with 30 days to comply after receiving a copy of the order, as O.C.G.A. Sec. 42-8-62.2(f) provides; with disclosure limited as O.C.G.A. Sec. 42-8-62.2(g) sets out.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this petition personally. Nothing on this page is signed or dated for the defendant. No verification and no notary block is required by statute, and none is added.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Savannah, Georgia
31401-2214

TELEPHONE: (912) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Defendant, Pro Se (where unrepresented)

Route: obligation:track-only:GA:ga-fo-discharged-pre2026

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MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PROPOSED ORDER SEALING FIRST OFFENDER RECORDS AND DIRECTING RESTRICTION
(O.C.G.A. Sec. 42-8-62.2(c))

(This page is proposed by the defendant for the Court's consideration, as the controlling practice directs a
proposed order always accompany the filing. Every order line below is completed, signed and dated only
by the Court.)

Before the Court is the defendant's Petition to Restrict and Seal Discharged First Offender Records under
O.C.G.A. Sec. 42-8-62.2(c).

IT IS ORDERED that the Clerk of the court named in the caption seal and make unavailable to the public
the criminal file, docket books, criminal minutes, final record, all other records of the court and the
defendant's criminal history record information in the clerk's custody, including within any index, within
60 days of this order, pursuant to O.C.G.A. Sec. 42-8-62.2(d) and (e).

IT IS FURTHER ORDERED that all law enforcement agencies, jails and detention centers, including the
arresting agency and the jail or detention center, restrict their records of this case, identified by the OTN
and the date of arrest stated below, and make them unavailable to the public within 30 days of receiving a
copy of this order, pursuant to O.C.G.A. Sec. 42-8-62.2(f).

Disclosure of the sealed and restricted information remains limited as O.C.G.A. Sec. 42-8-62.2(g) sets
out.

OTN of the case (needed for this order to be actionable by GCIC):

.....

Date of arrest identified in this order:

.....

SO ORDERED, this day of, 20.....

.....

JUDGE, COURT NAMED IN THE CAPTION

(The judge's signature block is a third-party block. It is never prefilled, and the court dates its own order.)

Route: obligation:track-only:GA:ga-fo-discharged-pre2026

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MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant.

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I served a copy of the
Petition to Restrict and Seal Discharged First Offender Records and the accompanying proposed order on
each person listed below, by registered or certified mail or statutory overnight delivery (statutorily
sufficient under O.C.G.A. Sec. 42-8-62.2(c)); hand delivery or e-filing may also be used.

NAME AND MAILING ADDRESS OF THE PROSECUTING ATTORNEY SERVED, IDENTIFIED AS
DISTRICT ATTORNEY OR SOLICITOR-GENERAL FOR THE COUNTY (you write it here before
service; the clerk's office can provide it):

.....
.....

OFFICE OF THE CLERK OF COURT SERVED (the clerk of the court named in the caption; the clerk's
office can confirm its service address):

.....
.....

Method used to serve each recipient (chosen from those listed above, as the clerk directs):

.....

DATE OF SERVICE

SIGNATURE OF DEFENDANT

This page is not proof of service and does not say that anything has been served. It is completed and
signed when the copies actually go out. A date or a signature written before the copies go out would be
false.

Route: obligation:track-only:GA:ga-fo-discharged-pre2026

EXHIBIT A - FINAL DISPOSITION SHOWING THE FIRST OFFENDER SENTENCE, AND THE DISCHARGE ORDER WHERE ONE WAS ENTERED

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict and Seal Discharged First Offender Records in this packet.

ATTACH BEHIND THIS PAGE: the final disposition showing that you were sentenced under the First Offender Act, and the discharge order where one was entered.

WHERE YOU GET IT: the clerk of the court that sentenced you and granted the discharge.

HOW: Ask the clerk for the final disposition showing the First Offender sentence, and for the discharge order if one was entered. A discharge frequently was never entered; where that is so, the petition says you were discharged as a matter of law, and you attach the disposition alone.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

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